

EMERGENCY PROVISIONS

Articles 352 · 356 · 360

National Emergency | President's Rule | Financial Emergency — Part XVIII of the Constitution

- Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✗ Common Mistake
🧠 Memory Trick

StudyPlanner



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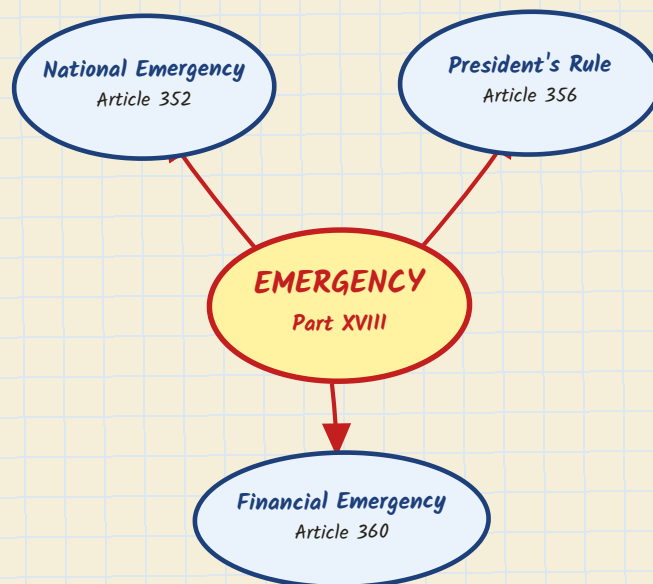


EMERGENCY PROVISIONS — THE BIG PICTURE

All emergency provisions sit in **Part XVIII (18)** of the Constitution. (Part XX (20) separately deals with the procedure to amend the Constitution.) There are **three** kinds of emergency — National Emergency, President's Rule, and Financial Emergency.



Fig 1: The 3 Types of Emergency — Mind Map



National Emergency — Grounds (Art. 352)

A National Emergency can be declared by the **President** on exactly three grounds:

- **War**
- **External Aggression**
- **Armed Rebellion**

 Old wording (before the 44th Amendment): "internal disturbance" → New wording (after the 44th Amendment): "armed rebellion"

Memory Trick

Just remember **W-E-A** — War, External aggression, Armed rebellion. All three (and only these three) are grounds for a National Emergency under Article 352.

Common Mistake

Don't write "**internal disturbance**" as a current ground for National Emergency! That old term was replaced by "armed rebellion" through the **44th Amendment**.

Exam Tip

Article 352 lists exactly **3** grounds — War, External Aggression, Armed Rebellion. If an option in your exam says "internal disturbance," it's the *old*, pre-44th-Amendment wording — not the current one!

Who Declares It?

The **President** declares a National Emergency under **Article 352**. But a proclamation cannot be issued casually — see the next page for exactly how.

Handy Number Pattern

National Emergency = Art. **352**, President's Rule = Art. **356**, Financial Emergency = Art. **360** — each number jumps by 4!

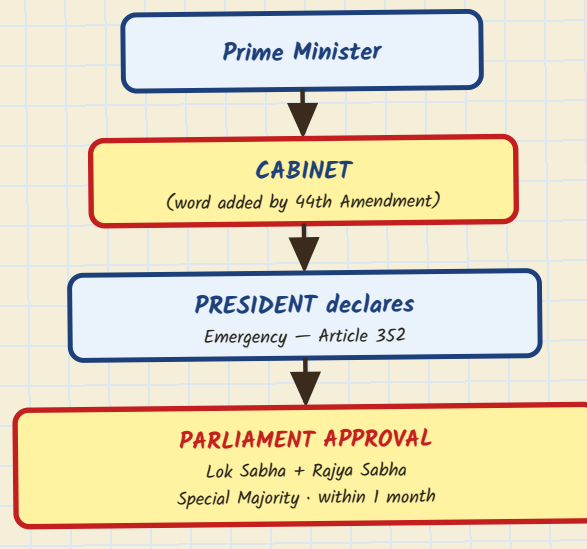
IMPOSING + REVOKING A NATIONAL EMERGENCY

Declaring a National Emergency is a multi-step process — and revoking one is a completely different (and much easier) process.

Step 1 – The Cabinet's Role

The 44th Amendment added the word "**Cabinet**" to Article 352 for the first time. When the Prime Minister advises the President to impose an Emergency, he must first get the approval of the Cabinet — he cannot decide this on his own.

Fig 2: How a National Emergency Gets Imposed



Step 2 – Parliament's Approval

- Must be approved by **both Houses** of Parliament — Lok Sabha and Rajya Sabha
- Needs a **special majority** in both Houses
- Must be passed within **one month** of the proclamation
- Earlier, this time limit was **two months** — reduced to **one month** by the 44th Amendment

Exam Tip

The 44th Amendment cut Parliament's approval window from **2 months** down to **1 month** — a favourite "fill in the blank" question in exams!

Revoking a National Emergency

An Emergency continues until it is revoked. It can end in **two** ways:

President revokes on his own, anytime →

OR: Lok Sabha resolution, simple majority →

★ President **MUST** revoke — no option

✗ Common Mistake

Don't assume revoking follows the same "special majority, both Houses" rule as imposing! Revoking needs only a **simple majority**, and only in the Lok Sabha — the Rajya Sabha is not even required for revocation.

🧠 Memory Trick

"**Big** to declare, **small** to disband" — imposing needs a special (big) majority in both Houses within 1 month; revoking needs only a simple (small) majority, and only in the Lok Sabha.

📖 Recap: All 3 Changes Made by the 44th Amendment to Art. 352 (tap to expand) ▼

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NATIONAL EMERGENCY IN HISTORY — INVOKED 3 TIMES

A National Emergency under Article 352 has been proclaimed **three times** in total.

1962

War with **China** — National Emergency proclaimed.

1965

War with **Pakistan** — no fresh Emergency was proclaimed, because the 1962 Emergency was still in force.

1971

War with Pakistan — India helped liberate **Bangladesh**. Second National Emergency proclaimed.

1975

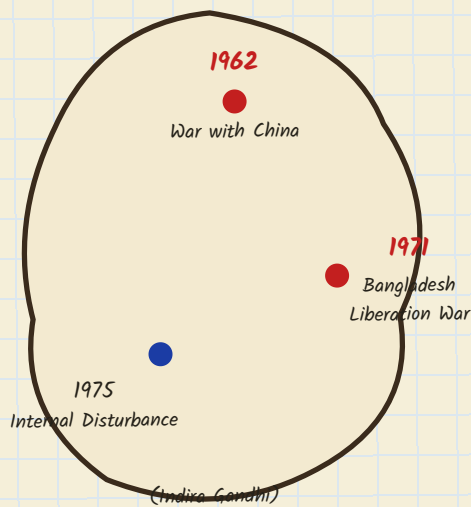
Emergency proclaimed by **Indira Gandhi** on the ground of "internal disturbance" (the term in use at that time).



3 National Emergencies: 1962 → 1971 → 1975



Fig 3: The Three National Emergencies



War vs Internal Disturbance

- 1962 and 1971 — both declared on the ground of **war**
- 1975 — declared on the ground of **internal disturbance** (the pre-44th-Amendment term)



Memory Trick

2 wars + 1 internal disturbance = 3 National Emergencies. The 1975 one is the only one **not** caused by a war.



Common Mistake

Don't count 1965 as a separate National Emergency! The 1962 Emergency was still continuing at that point, so no fresh proclamation was needed for the 1965 war with Pakistan.

Exam Tip

"How many times has a National Emergency been imposed?" → always 3: 1962, 1971, 1975. Don't be tricked by 1965!

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FUNDAMENTAL RIGHTS DURING A NATIONAL EMERGENCY

Fundamental Rights are **restricted during a National Emergency**. They are *not* restricted in the same way during President's Rule.

Exam Tip

"Which emergency restricts Fundamental Rights the most?" → always **National Emergency** (Art. 352) — not President's Rule.

Two Articles Used to Suspend Rights

- **Article 358** — deals with Article 19's six rights
- **Article 359** — deals with the remaining rights

Articles 20 and 21 are **never** suspended — under any circumstances, under either Article.

Article 358 — The Six Rights of Article 19

If the six rights under **Article 19** are to be suspended, the **President** must pass a specific order under Article 358 — it does not happen automatically.

 **Common Mistake**

Article 19's rights are *not* automatically suspended the moment a National Emergency is declared — the President has to pass a separate order under Article 358.

Article 359 – The Remaining Rights

Article 359 covers the **remaining rights** (all Fundamental Rights except Article 19). Note this carefully: it is not the right itself that is suspended — it is the right to move the court to enforce that right which gets suspended. In effect, that still means the right cannot be claimed during this period.



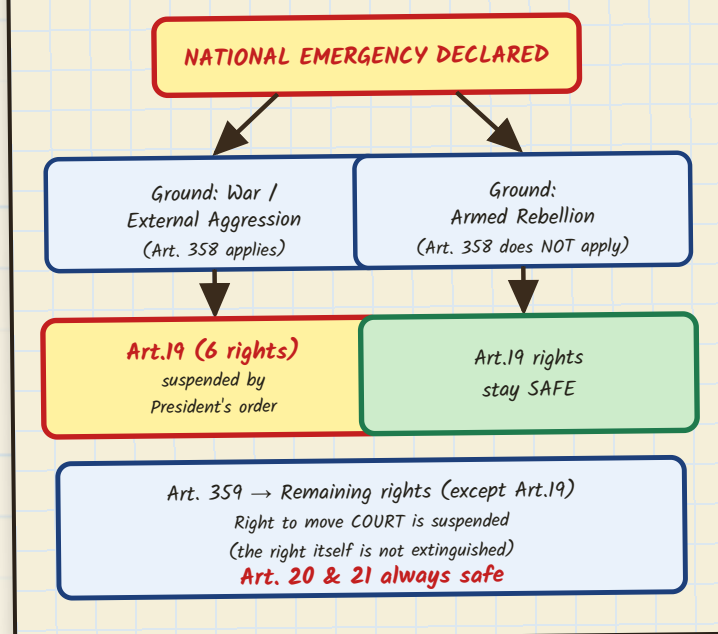
Understand it like this...

Imagine owning a locked safe (your right) but losing the only key that opens it (your right to move court). The safe still exists — you just can't access what's inside for now. That's Article 359 in a nutshell.

Special Protection for "Armed Rebellion"

If the National Emergency is imposed on the ground of **armed rebellion**, the six rights of Article 19 **cannot be suspended** at all — Article 358 only comes into play when the ground is war or external aggression.

Fig 4: Which Article Suspends What?



Recap: Article 358 vs Article 359 (tap to expand) ▼



Memory Trick

"358 for 19, 359 for the rest, 20-21 are always the best (protected)!"

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PRESIDENT'S RULE (ART. 356) + FINANCIAL EMERGENCY (ART. 360)

President's Rule – Grounds

- **Article 356** — breakdown of constitutional machinery in a State
- **Article 365** — a State fails to comply with directions given by the Centre

The **President** imposes President's Rule. Unlike a National Emergency, which can continue for any length of time, President's Rule **cannot exceed three years**.



Also Known As...

Popularly, President's Rule is called a "State Emergency" — but that's just a nickname; the Constitution itself calls it President's Rule.



Key Differences from National Emergency

Feature	National Emergency (352)	President's Rule (356)
Parliament approval within	1 month	2 months
Majority required	Special majority	Simple majority
Maximum duration	No limit	3 years



Common Mistake

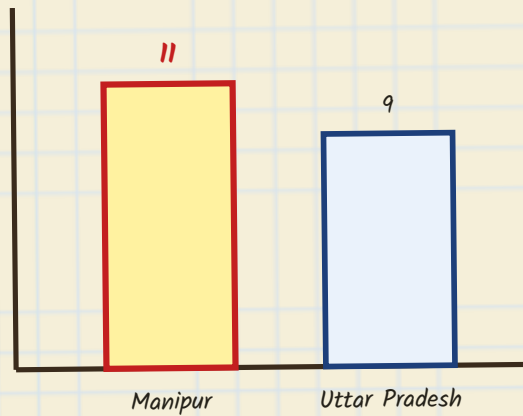
Don't apply the "special majority, 1 month" rule to President's Rule! It only needs a **simple majority within 2 months** — that stricter rule is only for National Emergency.



Where Has It Been Imposed the Most?



Fig 5: President's Rule – Most-Imposed States



State	No. of times President's Rule imposed
Manipur	11 times (currently under it)
Uttar Pradesh	9 times

Exam Tip

Highest number of times President's Rule imposed: **Manipur – 11 times** (currently ongoing); second-highest: **Uttar Pradesh – 9 times**.

Memory Trick

"Manipur = Maximum (11 times)."

Financial Emergency – Article 360

A Financial Emergency, under **Article 360**, has **never been imposed** to date.

- If it ever is, the **President** can reduce the salaries of **all government employees** and members of **government constitutional bodies**
- This does not happen automatically — the President has to actually order it



Memory Trick

Financial Emergency = the "never-used" emergency. Zero times, till today.

★ Exam-Ready Summary

Type	Article	Times Invoked
National Emergency	352	3 (1962, 1971, 1975)
President's Rule	356 / 365	Many — Manipur 11 (highest), UP 9
Financial Emergency	360	0 (never)

Art.352 National Emergency



Art.356 / 365 President's Rule



Art.360 Financial Emergency



Exam Tip

Quick recall — **352** National, **356** President's Rule (+365 for non-compliance), **360** Financial. Ranked by how often actually used: National (3) > President's Rule (many) > Financial (0).

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